



**AMENDED AND RESTATED BY-LAWS
OF
COLUMBIA LAKES HOMEOWNERS ASSOCIATION, INC.**

WHEREAS, the Bylaws of Columbia Lakes Association, Inc., are dated September, 2005 (hereinafter "Bylaws");

WHEREAS, Article VI, Section F of the Bylaws provides that said document can be amended by a majority of the Board of Directors; and

WHEREAS, at a duly noticed meeting, at least a majority of the Board of Directors present in person or by proxy voted to amend and restate the Bylaws;

NOW THEREFORE, the following Amended and Restated Bylaws of Columbia Lakes Homeowners Association, Inc. does hereby completely replace any previously recorded Bylaws or amendments thereto.

**ARTICLE I
NAME AND LOCATION.**

The name of the corporation is **COLUMBIA LAKES HOMEOWNERS ASSOCIATION, INC.**, hereinafter referred to as the "Association," which is a subdivision in Brazoria County, Texas. The principal office of the corporation shall be located at 310 E Brazos Avenue, West Columbia, TX 77486, but meetings of members and directors may be held at such places as may be designated by the Board of Directors. All present or future Owners, present or future tenants, their employees, or other Persons that use the facilities of the Subdivision in any manner are subject to the regulations set forth in these Bylaws. The acquisition or rental of any of the Lots of the Subdivision, or the act of occupancy of any of the Lots, will signify that these Bylaws are accepted and ratified and will be complied with by the purchaser, tenant, or occupant.

**ARTICLE II
DEFINITIONS**

Section 1. "Association" shall mean and refer to **COLUMBIA LAKES HOMEOWNERS ASSOCIATION, INC.**, its successors and assigns.

Section 2. "Lot" shall mean and refer to any plat of land identified as a Lot or tract on the plat of the Subdivision.

Section 3. "Owner" shall mean and refer to the record owner, whether one or more persons or entities, of the fee simple title to any Lot or Lots which is a part of the Subdivision, including contract sellers, but excluding persons or entities who hold a lien, easement, mineral interest or royalty interest burdening the title thereto.

Section 4. "Declaration" shall mean and refer to the Declaration of Covenants, Conditions, and Restrictions for Columbia Lakes Subdivision, recorded in the Official Records of Real Property of Brazoria County, Texas under Volume 1128, Page 911, and any Amendments thereto that may be made from time to time in accordance with its terms.

Section 5. "Member" shall mean and refer to those persons entitled to membership as provided in the Declaration.

Section 6. "Subdivision" means Columbia Lakes Subdivision, Sections 1, 2, 3, 4, and 5, a subdivision in Brazoria County, Texas, and any additional property annexed thereto, according to the Plats, including the land, all improvements and structures on the land, and all easements, rights, and appurtenances to the land, as more particularly described in the Declaration.

Section 7. "Other Terms" as used in these Bylaws shall have the meaning given them in the Declaration, which is incorporated by reference and made a part of these Bylaws.

ARTICLE III MEETINGS OF MEMBERS

Section 1. Annual Meetings. The annual meeting of the Members shall be held each year, on a day and at an hour to be determined by the Board of Directors.

Section 2. Special Meetings. Special meetings of the Members may be called at any time by the President or by the Board of Directors, or upon written request of the Members who are entitled to vote ten percent (10%) all of the votes of the membership.

Section 3. Notice of Meetings. Written notice of the annual meeting and each Special Meeting of the Members shall be given by, or at the direction of, the Secretary or person authorized to call the meeting, by mailing a copy of such notice, postage prepaid, at least ten (10) but no more than sixty (60) days before such meeting to each member entitled to vote, addressed to the member's address last appearing on the books of the Association, or supplied by such Member to the Association for the purpose of notice. Such notice shall specify the place, day and hour of the meeting, and, in the case of a special meeting, the purpose of the meeting

Section 4. Proxies. At all meetings of Members, each Member may vote in person or by proxy. All proxies shall be in writing and filed with the Secretary. Every proxy shall be revocable and shall automatically cease upon conveyance by the Member of his Lot. No proxy shall be valid after eleven (11) months from the date of its execution, unless otherwise provided in the proxy.

Section 5. Conduct of Meetings. The President shall preside over all meetings of the Association, and the Secretary shall keep (or direct to be kept) the minutes of the meeting.

ARTICLE IV VOTING RIGHTS OF MEMBERS

Section 1. Manner of Voting. At all meetings of Members, each Member, may vote in person, by a legitimate proxy in form approved by the Board, by absentee ballot, or by electronic ballot. (*Tex. Bus. Orgs. Code §22.160(b), (d); Tex. Prop. Code §209.00592(a).*) All proxies must be in writing and filed with the Secretary of the Association before any

Member may vote by proxy. Every proxy will be revocable and will automatically cease on conveyance by the Member of the Member's Lot or on receipt of notice by the Secretary of the Association of the death or judicially declared incompetence of the Member. No proxy will be valid after eleven (11) months from the date of its execution, unless otherwise specifically provided in the proxy. (*Tex. Bus. Orgs. Code §22.160(c).*)

Section 2. Quorum.

- (a) Quorum in General. The presence at the meeting of Members entitled to cast, or of proxies entitled to cast, ten percent (10%) or more of the votes of each class of membership shall constitute a quorum for any action except as otherwise provided in the Articles of Incorporation, the Restrictions, or these Bylaws. Also, an absentee or electronic ballot may be counted as a Member present and voting for the purpose of establishing a quorum only for items appearing on the ballot. (*Tex. Bus. Orgs. Code §22.159.*)
- (b) Quorum for Association Business OTHER than Board of Director Elections: If, however, a quorum shall not be present or represented at any meeting, the Members entitled to vote shall have power to adjourn the meeting from time to time, without notice other than an announcement at the meeting, until a quorum as aforesaid shall be present or be represented. No such subsequent meeting shall be held more than sixty (60) days following the preceding meeting.
- (c) Quorum for Board of Director Elections: If quorum is not present or represented, the meeting shall be adjourned without notice other than announcement at the meeting, and immediately reconvened for the sole purpose of election of directors. At the reconvened meeting, quorum shall be all those members counted as present whether in person or by proxy, absentee ballot, electronic ballot, or any other method of representative or delegated voting. Directors shall be elected by a majority of those votes. (*Tex. Prop. Code §209.00593(a).*)

Section 3. Voting

- (a) Voting Rights. Members shall be all Owners and shall be entitled to one vote for each Lot owned. When more than one person holds an interest in any Lot, all such persons shall be Members. The vote for such Lot shall be exercised as they determine, but in no event shall more than one (1) vote be cast with respect to any Lot. Holders of future interests not entitled to present possession shall not be considered as Owners for the purposes of voting hereunder.

(b) Required votes. The vote of the majority of the votes entitled to be cast by the Members present, or represented by proxy, by absentee ballot, or by electronic ballot, at a meeting at which a quorum is present will be the act of the Members, unless the vote of a greater number is required by statute, the Declaration, or the Certificate of Formation; however, an absentee or electronic ballot may not be counted, even if properly delivered, if the Member actually attends the meeting to vote in person and does so cast a vote at the meeting, and may not be counted on the final vote of a proposal if the motion was amended at the meeting to be different from the exact language on the absentee or electronic ballot. (*Tex. Prop. Code §209.00592(b).*)

Section 4. Absentee Ballots. A solicitation for votes by absentee ballot must include (a) an absentee ballot that contains each proposed action and provides an opportunity to vote for or against each proposed action, (b) instructions for delivery of the completed absentee ballot, including the delivery location, and (c) the following language: “By casting your vote via absentee ballot you will forgo the opportunity to consider and vote on any action from the floor on these proposals, if a meeting is held. This means that if there are amendments to these proposals your votes will not be counted on the final vote on these measures. If you want to retain this ability, please attend any meeting in person. You may submit an absentee ballot and later choose to attend any meeting in person, in which case any in-person vote will prevail.” (*Tex. Prop. Code §209.00592(c).*)

Section 5. Electronic Ballots. An electronic ballot means a ballot (a) given by electronic mail, fax, or posting on an Internet website, (b) for which the identity of the Member submitting the ballot can be confirmed, and (c) for which the Member may receive a receipt of the electronic transmission and receipt of the Member's ballot. (*Tex. Prop. Code §209.00592(d).*) If an electronic ballot is posted on an Internet website, a notice of the posting will be sent to each Member with instructions on obtaining access to the posting on the website. (*Tex. Prop. Code §209.00592(e).*)

ARTICLE V BOARD OF DIRECTORS; SELECTION; TERM OF OFFICE

Section 1. Number. The affairs of this Association shall be managed by a Board of Directors, with a minimum of three (3) directors but no more than six (6) directors.

Section 2. Term of Office. The Members shall elect Directors for three year terms.

Section 3. Removal. Directors may be removed, with or without cause, by a majority vote of the members of the Association who are present in person or by proxy at a special meeting of the Members duly called for that purpose. (*Tex. Bus. Orgs. Code §22.211.*) Notice of the meeting must be given to all Directors. If the Board is presented with written, documented evidence from a database or other record maintained by a law enforcement authority that a Director has been convicted of a felony or crime involving moral turpitude, the Director is immediately ineligible to serve on the Board, automatically considered removed from the Board, and prohibited from future service on the Board. (*Tex. Prop. Code §209.00591(b).*)

Section 4. Vacancies; Resignation or Death; Appointment of Successor. If the office of any Director becomes vacant for any reason, the remaining Directors will choose a successor to fill the unexpired term of the directorship being vacated at a special meeting called for that purpose. {*See Tex. Prop. Code §209.00593(a).*} At the expiration of the term of his or her

position on the Board, any successor Director chosen by the remaining Directors or by the Members will be reelected or his or her successor will be elected in accordance with these Bylaws. Any directorship to be filled by reason of an increase in the number of Directors will be filled by election at an annual meeting of Members or at a special meeting of Members called for that purpose. {See Tex. Bus. Orgs. Code §22.212(b).}

Section 5. Compensation. No director shall receive compensation for any service he may render to the Association. However, any director may be reimbursed for his actual expenses incurred in the performance of his duties.

Section 6. Manager. If the Board determines that it is in the Association's best interest to hire a Manager for the Subdivision to facilitate management of the Subdivision or the administration of the Association, the Board may delegate to a Manager responsibility for matters of a routine nature.

ARTICLE VI NOMINATION AND ELECTION OF DIRECTORS

Section 1. Nomination of Directors. Nomination for election to the Board may be made in accordance with the solicitation for nomination provisions found in Texas Property Code 209.00593 as well as from the floor at the annual meeting of the Members.

Section 2. Election of Directors. Directors are elected at the annual meeting of Members. Members or their proxies may cast, in respect to each vacant directorship, as many votes as they are entitled to exercise under the provisions of the Declaration. The nominees receiving the highest number of votes will be elected. Cumulative voting is prohibited. {See Tex. Bus. Orgs. Code §22.161(b).}

ARTICLE VII MEETINGS OF DIRECTORS

Section 1. Regular Meetings. Regular meetings of the Board will be held at least quarterly at a place within the Subdivision or at any other place permitted by law and designated at any time by resolution of the Board, at a time as may be fixed from time to time by resolution of the Board. {*See Tex. Prop. Code §209.0051(c-1).*} Notice of the time and place of regular meetings will be given in accordance with Section 8 below. Should said meeting fall upon a legal holiday, then the meeting shall be held at the same time on the next day which is not a legal holiday.

Section 2. Special Meetings. Special meetings of the Board of Directors shall be held when called by the President of the Association, or by any two Directors, after not less than three (3) days notice to each Director.

Section 3. Quorum. A majority of the number of Directors shall constitute a quorum for the transaction of business. Every act or decision done or made by a majority of the Directors present at a duly held meeting at which a quorum is present shall be regarded as the act of the Board.

Section 4. Action Without a Meeting. Except as provided by Tex. Prop. Code §209.0051(h), a board may take action outside of a meeting, including voting by electronic or telephonic means, without prior notice to owners under Subsection 209.0051(e), if each board member is given a reasonable opportunity to express the board member's opinion to all other board members and to vote. Any action taken without notice to owners under Subsection (e) must be summarized orally, including an explanation of any known actual or estimated expenditures approved at the meeting, and documented in the minutes of the next regular or special board meeting. Any action so approved shall have the same effect as though taken at a meeting of the directors.

Section 5. Open Meetings. Regular and special meetings of the Board will be open to all Members of the Association; however, Members who are not members of the Board may not participate in any deliberation or discussion unless expressly authorized to do so by the vote of a majority of a quorum of the Board. {See Tex. Prop. Code §209.0051(c).}

Section 6. Executive Session. The Board may, with the approval of a majority of a quorum, adjourn a meeting and reconvene in executive session to discuss and vote on personnel matters, litigation in which the Association is or may become involved, contract negotiations, enforcement actions, confidential communications with the Association's attorneys, matters involving the invasion of privacy of individual Members, other business of a confidential nature involving a Member, and matters requested by the involved parties to remain confidential. {Tex. Prop. Code §209.0051(c).} The nature of any business to be considered in executive session will first be announced in open session. {Tex. Prop. Code §209.0051(c).} Any decision made in the executive session must be summarized orally and placed in the minutes, in general terms, without breaching the privacy of individual owners, violating any privilege, or disclosing information that was to remain confidential at the request of the affected parties. {Tex. Prop. Code §209.0051(c).} The oral summary must include a general explanation of expenditures approved in the executive session. {Tex. Prop. Code §209.0051(c).}

Section 7. Meeting Minutes. The Board will keep a record of each regular or special meeting of the Board in the form of written minutes of the meeting. {Tex. Prop. Code §209.0051(d).} The Board will make meeting records, including approved minutes, available to the Members for inspection and copying on written request to the Manager at the address appearing on the most recently filed management certificate, or if there is not a Manager, to

the Board. {*Tex. Prop. Code §209.0051(d).*}

Section 8. Notice to Members. Except for actions taken by the Board without a meeting under Section 4, and meetings held by telephone conference or other similar remote or electronic communication system in which all Persons participating in the meeting can hear each other, Members will be given notice of the date, time, place, and general subject of all regular or special meetings of the Board, including a general description of any matter to be brought up for deliberation in executive session. {*Tex. Prop. Code §209.0051(e).*} The notice must be (1) mailed to each Member no earlier than sixty (60) days and no later than ten (10) days before the meeting; **or** (2) provided at least seventy-two (72) hours before the start of the meeting by (a) posting the notice in a conspicuous manner reasonably designed to provide notice to the Members (i) in a prominent place or places in the Common Area and Facilities of the Subdivision **or**, with the consent of the applicable Owner, on other conspicuously located privately owned property within the Subdivision, **or** (ii) on any Internet website maintained by the Association or other Internet media; **and** (b) sending the notice by electronic mail (e-mail) to each Member who has registered an e-mail address with the Association. {*Tex. Prop. Code §209.0051(e)(1), (e)(2).*} It is an owner's duty to keep an updated email address registered with the Association. {*Tex. Prop. Code §209.0051(f).*}

If the Board recesses a regular or special meeting of the Board to continue the following regular business day, the Board is not required to post notice of the continued meeting if the recess is taken in good faith and not to circumvent the notice requirements of this Section. {*Tex. Prop. Code §209.0051(g).*} If a regular or special meeting of the Board is continued to the following regular business day, and on that following day the Board continues the meeting to another day, the Board will give notice of the continuation in at

least one manner prescribed by this Section within two (2) hours after adjourning the meeting being continued. *{Tex. Prop. Code §209.0051(g).}*

Despite anything in these Bylaws to the contrary, the Board may not, without prior notice to the Members under this Section, consider or vote on (1) fines, (2) damage assessments, (3) initiation of foreclosure actions, (4) initiation of enforcement actions, excluding temporary restraining orders or violations involving a threat to health or safety, (5) increases in Assessments, (6) levying of special Assessments, (7) appeals from a denial of Architectural Committee approval, (8) a suspension of a right of a particular Owner before the Owner has an opportunity to attend a meeting of the Board to present the Owner's position, including any defense, on the issue, (9) lending or borrowing money, (10) the adoption or amendment of a dedicatory instrument, (11) the approval of an annual budget or the approval of an amendment of an annual budget that increases the budget by more than 10 percent, (12) the sale or purchase of real property, (13) the filling of a vacancy on the board, (14) the construction of capital improvements other than the repair, replacement, or enhancement of existing capital improvements, or (15) the election of an officer.

{Tex. Prop. Code §209.0051(h)}

ARTICLE VIII POWER AND DUTIES OF THE BOARD OF DIRECTORS

Section 1. Powers. The Board of Directors shall have power to do the following:

(a) Adopt, amend, repeal and enforce Rules and Regulations and enforcement provisions as it deems necessary or desirable with respect to the interpretation and implementation of the Declaration, the operation of the Association, and the use of property and Lots within the Subdivision.

(b) Exercise for the Association all powers, duties and authority vested in or delegated to this Association and not reserved to the membership by other provisions of these By-Laws, the Articles of Incorporation, or the Declaration.

(c) Declare the office of a member of the Board of Directors to be vacant in the event such member shall be absent from three (3) consecutive regular meetings of the Board of Directors.

(d) Employ a manager, an independent contractor, or such other employees as they deem necessary, and to prescribe their duties.

Section 2. Duties. It shall be the duty of the Board of Directors to do the following:

(a) Cause to be kept a complete record of all its acts and corporate affairs.

(b) As more fully provided in the Declaration, to:

(1) fix the amount of the annual assessment against each Lot;

(2) send written notice of each assessment to every Owner subject thereto; and

(3) foreclose the lien against any property for which assessments are not paid or to bring an action at law against the owner personally obligated to pay the same, as it may deem appropriate.

(c) Issue, or to cause an appropriate officer to issue, upon demand by any person, a certificate setting forth whether or not any assessment has been paid. A reasonable charge may be made by the Board for the issuance of these certificates. If a certificate states an assessment has been paid, such certificate shall be conclusive evidence of such payment.

(d) Procure and maintain adequate liability and hazard insurance on any property owned by the Association.

(e) Cause all officers or employees having fiscal responsibilities to be bonded, as it may deem appropriate.

ARTICLE IX OFFICERS AND THEIR DUTIES

Section 1. Enumeration of Offices. The Officers of the Association will be a President, a Secretary, and a Treasurer and may include one or more Vice Presidents, Assistant Secretaries, or Assistant Treasurers. {*Tex. Bus. Orgs. Code §22.231(a).*} The Board may, by resolution, create any other offices it deems necessary or desirable.

Section 2. Election of Officers. The election of officers shall take place at the first meeting of the Board of Directors following each annual meeting of the Members.

Section 3. Term. The Officers of the Association will be elected annually by the Board and each will hold office for one (1) year, unless the Officer resigns, is removed, or is otherwise disqualified to serve, and until his successor is elected and qualified. {*See Tex. Bus. Orgs. Code §22.232.*}

Section 4. Special Appointments. The Board may elect such other officers as the affairs of the Association may require, each of whom shall hold office for such period, have such authority, and perform such duties as the Board may, from time to time, determine.

Section 5. Resignation and Removal. Any Officer may resign at any time by giving written notice to the Board. A resignation will take effect on the date notice is received or at any later time specified in the notice. Any Officer may be removed from office by the Board whenever, in the Board's judgment, the Association's best interests would be served by the removal, except that the Board will have no authority to remove, and cannot remove, any Officer elected by Declarant. {*See Tex. Bus. Orgs. Code §3.104(a).*}

Section 6. Vacancies. A vacancy in any office may be filled by appointment by the Board. The officer appointed to such vacancy shall serve for the remainder of the term of the officer he replaces.

Section 7. Multiple Offices. Any two or more offices may be held by the same Person, except that the same Person may not hold the offices of President and Secretary. {*Tex. Bus. Orgs. Code §22.231(a).*}

Section 8. Duties. The duties of the officers are as follows:

(a) President. The President of the Association will perform the following duties:

- (1) Preside over all meetings of the Members and of the Board.
- (2) Sign as President all deeds, contracts, and other instruments in writing that have been first approved by the Board, unless the Board, by duly adopted resolution, has additionally authorized the signature of another Officer.
- (3) Call meetings of the Board whenever he deems it necessary in accordance with the Association Rules and on notice as required by the Declaration.
- (4) Have, subject to the advice of the Board, general supervision, direction, and control of the affairs of the Association and discharge any other duties as may be required of him by the Board.
- (5) May co-sign all checks and promissory notes of the Association along with the Treasurer.
- (6) Prepare and have recorded all amendments to the Declaration made by the Association.
- (7) The President shall not vote except as necessary to break a tie vote between members of the Board of Directors.

(b) Vice President. The Vice President of the Association will perform the following duties:

- (1) Act in the place of the President in the event of the President's absence, inability, or refusal to act.
- (2) Exercise and discharge any other duties as may be required of the Vice President by the Board, and in connection with any additional duties, the Vice President will be responsible to the President.
- (3) Act, exercise and discharge such other duties as may be required of him by the Board.

(c) Secretary. The Secretary of the Association will perform the following duties:

- (1) Keep a record of all meetings, votes, and proceedings of the Board and

of the Members.

(2) Keep the seal of the Association and affix it on all papers requiring the seal.

(3) Serve notices of meetings of the Board and the Members required either by law or by these Bylaws.

(4) Keep appropriate current records showing the Members together with their addresses.

(5) Sign as Secretary all deeds, contracts, and other instruments in writing that have been first approved by the Board if the instruments require a second signature by the Association, unless the Board has authorized another Officer to sign in the place and stead of the Secretary by duly adopted resolution.

(6) Prepare and have recorded all amendments to the Declaration required by statute to be recorded by the Association.

(7) Act, exercise and discharge such other duties as may be required of him by the Board.

(d) Treasurer. The Treasurer of the Association will perform the following duties:

(1) Receive and deposit in a bank or banks, as the Board may from time to time direct, all of the funds of the Association.

(2) Be responsible for and supervise the maintenance of books and records to account for the Association's funds and other Association assets.

(3) Disburse and withdraw funds as the Board may from time to time direct and in accordance with prescribed procedures.

(4) Keep proper books of account.

(5) Cause a periodic review of the Association books to be made by a public accountant.

(6) Sign all checks and promissory notes of the Association

(4) Prepare and distribute the financial statements for the Association required by the Declaration which may include an annual budget and a statement of income and expenditures to be presented to the membership at its regular annual meeting.

(5) Act, exercise and discharge such other duties as may be required of him by the Board.

ARTICLE X COMMITTEES

The Board of Directors may serve as the Architectural Control Committee or may appoint an Architectural Control Committee, as provided in the Declaration. The Board may designate one of the members of the Architectural Control Committee to act for the Committee without consulting the other member. In addition, the Board of Directors may appoint other committees as deemed appropriate in carrying out its purpose.

ARTICLE XI BOOKS AND RECORDS

Complete and correct books and records of account and minutes of proceedings of meetings of Members, Directors, and committees will be kept at the Association's registered office or principal office in the State of Texas. {*See Tex. Prop. Code §209.005.*} A record containing the names and addresses of all Members entitled to vote will be kept at the Association's registered office or principal office in the State of Texas. {*Tex. Bus. Orgs. Code §22.158(b).*}

The books, records and papers of the Association will be available for inspection and copying by any Member or any Director for any proper purpose upon the terms and conditions and subject to the requirements of Texas Property Code section 209.005 (or any successor statute). The Declaration, the Articles of Incorporation and the By-Laws of the Association shall be available for inspection by any Member at the principal office of the Association, where copies may be purchased at reasonable cost.

ARTICLE XII INDEMNIFICATION

Section 1. In General. The Association shall indemnify every officer and director of the Association against any and all expenses, including counsel fees, reasonably incurred by or imposed

upon any officer or director in connection with any action, suit or other proceeding (including the settlement of any such suit or proceeding if approved by the then Board of Directors of the Association) to which he may be made a party by reason of being or having been an officer or director at the time such expenses are incurred. The officers and directors of the Association shall not be liable to the members of the Association for any mistake of judgment, negligence, or otherwise, except for their own individual willful misconduct or bad faith. The officers and directors of the Association shall have no personal liability with respect to any contract or other commitment made by them, in good faith, on behalf of the Association (except to the extent that such officers or directors may also be owners of units), and the Association shall indemnify and forever hold each such officer and director free and harmless against any and all liability to others on account of such contract or commitment. Any right to indemnification provided for herein shall not be exclusive of any other rights to which any officer or director of the Association, or former officer or director of the Association, may be entitled.

The Corporation may purchase and maintain insurance on behalf of any person who is or was an officer or director of the Corporation against any liability asserted against him and incurred by him in any such capacity, or arising out of his status as such, whether or not the Corporation would have the power to indemnify him against such liability under the preceding provisions of this Article or applicable provisions of law.

Notwithstanding the provisions of the preceding paragraph, no person shall be entitled to indemnification pursuant thereto in relation to any matter as to which indemnification shall not be permitted by law.

Section 2. Rights Not Exclusive. The rights conferred above are not exclusive of any other right that any Person may have or later acquire under any statute, these Bylaws, the

Certificate of Formation, any resolution of Owners or Directors, by agreement, or otherwise.

Section 3. Other. Contracts or other commitments made by the Board, the Officers, or the Manager will be made by these Persons as agents for the Owners, and the Board, the Officers, and the Manager will have no personal responsibility on any contract or commitment (except as Owners), and the liability of any Owner on a contract or commitment will be limited to the proportionate share of the total liability that each Owner shares with respect to Assessments.

ARTICLE XIII AMENDMENTS

Section 1. These By-laws may be amended by a majority vote of the Board of Directors at any duly called meeting, pursuant to Section 22.102 of the Texas Business Organizations Code and the Association's Articles of Incorporation.

Section 2. In the case of any conflict between the Articles of Incorporation and these By-Laws, the Articles shall control; and in the case of any conflict between the Declaration and these By-Laws or the Articles, the Declaration shall control.

ARTICLE XIV MISCELLANEOUS

Section 1. Fiscal Year. The fiscal year of the Association shall begin on the first day of January and end on the 31st day of December of every year, except that the first fiscal year shall begin on the date of incorporation.

Section 2. Notices.

(a) Any notice, demand, or other communication required to be given or to be served on any Person must be in writing and delivered to the Person to whom the notice is

directed (1) in person, (2) by U.S. mail, registered or certified, return receipt requested, (3) by a nationally recognized overnight delivery service, or (4) by e-mail. Notices, demands, or other communications delivered by mail will be deemed given and received when deposited in a post office or other depository under the care or custody of the U.S. Postal Service, enclosed in a wrapper, addressed properly, and with proper postage affixed. Any notice, demand, or other communication given other than by certified or registered mail, return receipt requested, will be deemed to have been given and received when delivered to the Person at the Person's current address as reflected in the records of the Secretary.

(b) Directors and Members may participate in, and hold a meeting by means of, a telephone conference or other similar remote or electronic-communication system by means of which all Persons participating in the meeting can hear each other. Participation in a meeting involving remote communication will constitute presence in person at the meeting, except where a Person participates in the meeting for the express purpose of objecting to the transaction of any business on the ground that the meeting is not lawfully called or convened, if (1) the Association implements reasonable measures to verify that each Person considered present and permitted to vote at the meeting by means of remote communication is the appropriate Person entitled to participate and vote, (2) the Association implements reasonable measures to provide the Directors and Members at the meeting by means of remote communication a reasonable opportunity to participate in the meeting and to vote on matters submitted, including an opportunity to read or hear the proceedings of a meeting substantially concurrently with the proceedings, and (3) the Association maintains a record of any vote or other action taken at the meeting by means of remote communication.

Section 3. Rules.

(a) The initial Association Rules, if, as, and when adopted, will be effective until

amended or supplemented by the Board of Directors, and are in addition to any rules and regulations or other restrictions on use set forth in the Declaration.

(b) The Board, under these Bylaws and the Declaration, reserves the power to establish, make, and enforce compliance with any additional Association Rules as may be necessary for the operation, use, and occupancy of the Subdivision with the right to amend them from time to time, provided they do not conflict with the Declaration.

Section 4. Abatement and Enjoinment. The violation of any Association Rule promulgated by the Board, or the breach of any of these Bylaws, or the breach of any provision of the Declaration will give the Board the right, in addition to any other rights set forth in the Declaration or in these Bylaws, to do the following:

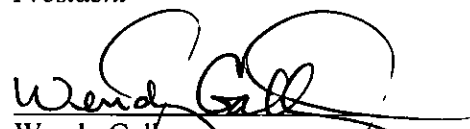
(a) To enter the Lot in which, or as to which, the violation or breach exists and to (1) summarily abate and remove, at the expense of the Owner of the defaulting Lot, any Person, structure, thing, or condition that may exist contrary to the intent and meaning of the provisions of the Declaration or these Bylaws, and the Board will not be deemed guilty in any manner of trespass, and (2) expel, remove, and put out such Person, structure, thing, or condition, using any force as may be necessary in so doing, without being liable to prosecution or any damages.

(b) To enjoin, abate, or remedy by appropriate legal proceedings, either at law or in equity, the continuance of any breach.

IN WITNESS WHEREOF, the undersigned, being the President and Secretary of the board of directors of the COLUMBIA LAKES HOMEOWNERS ASSOCIATION, INC., have hereunto set our hands this 5th day of March, 2021.



Keith E. Barker
President



Wendy Galloway
Secretary

ADDITIONAL DEDICATORY INSTRUMENT
for
COLUMBIA LAKES HOMEOWNERS ASSOCIATION, INC.

THE STATE OF TEXAS §
 §
COUNTY OF BRAZORIA §

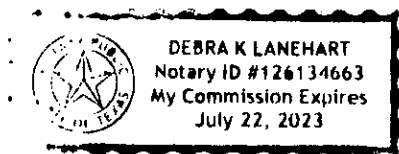
BEFORE ME, the undersigned authority, on this day personally appeared Keith Barker, who, being by me first duly sworn, states on oath the following:

My name is Keith Barker, I am over twenty-one (21) years of age, of sound mind, capable of making this affidavit, authorized to make this affidavit, and personally acquainted with the facts herein stated:

I am the President of COLUMBIA LAKES HOMEOWNERS ASSOCIATION, INC. Pursuant with Section 202.006 of the Texas Property Code, the following documents are copies of the original official documents from the Association's files:

AMENDED AND RESTATED BYLAWS

DATED this 5th day of March, 2021.

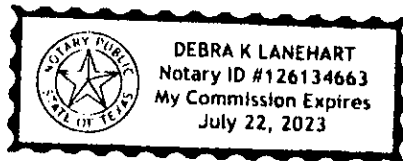


**COLUMBIA LAKES HOMEOWNERS
ASSOCIATION, INC.**

BY: [Signature]
KEITH BARKER, President
(Printed Name)

THE STATE OF TEXAS §
 §
COUNTY OF Brazoria §

THIS INSTRUMENT was **acknowledged** before me on this the 5th day of March, 2021 by the said Keith Barker, President of **COLUMBIA LAKES HOMEOWNERS ASSOCIATION, INC.**, a Texas non-profit corporation, on behalf of said corporation.



Debra K Lanehart
NOTARY PUBLIC IN AND FOR
THE STATE OF TEXAS

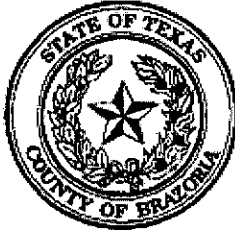
After Recording Return To:
Daughtry & Farine, P.C.
17044 El Camino Real
Houston, Texas 77058

FILED and RECORDED

Instrument Number: 2021015059

Filing and Recording Date: 03/11/2021 04:07:08 PM Pages: 24 Recording Fee: \$114.00

I hereby certify that this instrument was FILED on the date and time stamped hereon and RECORDED in the OFFICIAL PUBLIC RECORDS of Brazoria County, Texas.



A handwritten signature in black ink, appearing to read "Joyce Hudman".

Joyce Hudman, County Clerk
Brazoria County, Texas

ANY PROVISION CONTAINED IN ANY DOCUMENT WHICH RESTRICTS THE SALE, RENTAL, OR USE OF THE REAL PROPERTY DESCRIBED THEREIN BECAUSE OF RACE OR COLOR IS INVALID UNDER FEDERAL LAW AND IS UNENFORCEABLE.

DO NOT DESTROY - Warning, this document is part of the Official Public Record.

cclerk-cynthia